ABIGAIL CHIMANGA (Nee MAZVIMBAKUPA)
versus
DELIGHT CHIMANGA

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 24 to 26 November 2025 and 7 January 2026.

Divorce

A T Dangirwa, for the Plaintiff
M M Ndebele, for the Defendant

MAXWELL J:

The Plaintiff and Defendant were married in terms of the then Marriage Act [*Chapter 5:11*] now Marriages Act [*Chapter 5:17*] on the 11th of June 2014. There is one minor child from the parties' union. On the 17th of November 2022, Plaintiff issued out summons claiming a decree of divorce and ancillary relief. She submitted that the marriage relationship had irretrievably broken down to the extent that there is no reasonable prospect of the restoration of a normal marriage relationship between them. She stated that during the subsistence of the marriage, the parties acquired movable and immovable property. She proposed how the property should be shared between them. She also proposed that custody of the minor child be awarded to her with the Defendant having access during alternate weekends. She further proposed that the Defendant should contribute $800,00 or prevailing interbank equivalent in local currency as maintenance per month for the minor child until she attains the age of majority or becomes self-sufficient whichever occurs first.

Defendant gave notice and entered appearance to defend. In his plea he agreed that the marriage relationship had broken down irretrievably. He agreed that Plaintiff be granted custody of the minor child. He proposed that he be awarded the immovable property and indicated that he cannot afford the amount of maintenance proposed by the Plaintiff. He proposed to pay school

fees for the minor at the school every term and contribute $20,00 monthly rentals for the minor child.

Pleadings were exchanged. The parties held a pre-trial conference in which the only issue referred to trial was whether or not Stand Number 8015 Kuwadzana, Harare forms part of the parties' matrimonial property? If so, what is the just and equitable distribution of the immovable property?

Plaintiff was the first to testify. She testified that the parties married customarily in 2011 and solemnized the marriage in 2014. The marriage was blessed with one designer who is still a minor. In 2013 they bought a stand from City of Harare. Defendant had been on the waiting list for allocation of property … was no paying required instalments. She went to Remembrance Drive and reactivated Defendant's waiting list number after paying $100,00. Whilst still in Baines Avenues Clinic after giving birth in 2013, she was notified of the allocation of a stand. Her child was in an incubator. She asked for permission to go to Kuwadzana to process the stand issue, Stand 8015 in Kuwadzana 1 was allocated to them.

She contributed to the acquisition and construction on the property from proceeds of her cross boarder trading, hairdressing and sell of hair equipment and accessories. She realized around $1000,00 from her endeavors every month. As Defendant was a truck driver construction was done in his absence and she was the one acquiring the building materials, cooking for the builders and overseeing the construction. She produced invoices and receipts of the materials she purchased. She prayed that the property be shared equally between the parties. She stated that she moved out of the property in 2022 as Defendant was abusing her.

Under cross examination she indicated that she started hairdressing in 2006 before she was married. She stopped in 2022 when she gave birth to a disabled child who later passed away. She would take advantage of Defendant's trips and go to South Africa to buy her merchandise. She disputed that the trips were romantic only and not for business. She was given power of attorney to enable her to withdraw money from Defendant's account at Nedbank during the time he was away on trips. She disputed that Defendant acquired loans during the construction period. She would add her own money to the amount she withdrew from Nedbank.

Lucia Zharare testified in support of the Plaintiff. She is married to Plaintiff's brother. She confirmed that Plaintiff was already a hairdresser when she married the Defendant. She

confirmed that plaintiff would realise around $1000,00 a month from the sales. She indicated that in Defendant's absence, she would assist Plaintiff to prove some materials.

Under cross examination she indicated that she did not know if Plaintiff was making profit as she did not know for how much the products they sold had been bought for. She however expressed an opinion that Plaintiff would make a profit as the products were cheaper in South Africa and they would sell them at higher prices in Zimbabwe. That was the Plaintiff's case.

Defendant testified. He went on a waiting list for property in 2005. In 2010 he defaulted paying required instalments. A friend of the Plaintiff referred him to City Council employees who assisted him to regularize his position on the waiting list. In 2012 he was advised that $8 000,00 was required for him to be allocated a stand. He was in the Democratic Republic of Congo at the time. He therefore instructed Plaintiff to withdraw money from the bank and pay. He did not get proof of payment until he had to involve his uncle as he had no time to follow up in between trips. He threated to report the matter to the police. On return from a trip he was give n two receipts, one for $6 000,00 and another for $1 000,00. The money was from his Metropolitan Bank account. He produced receipts of the payments made to the Kuwadzana Housing Scheme. He also produced receipts of the developments done on the stand. He testified that some of the money used came from his retrenchment in 2015, and some from savings on his allocations for food. He indicated that the money was not enough therefore he obtained loans, $3 000,00 from Nedbank and $3 000,00 from FBC Bank. He repaid the loans from his earnings. He also engaged in Savings clubs with friends.

Defendant indicated that he had inherited a rural home from his late mother together with his half-brother. They agreed to sell it and they shared the proceeds. He receive $2 100,00 which he used in construction at the property. He disputed that Plaintiff would buy hair products in South Africa which would be ferried in the trucks he drove. He indicated that the reason Plaintiff would go to South Africa was that he would have missed her after long trips and he took her along for company. He disputed that she realised $1 000 a month and indicated that he would pay for her rent a chair as she was not able to raise the required $250. He disputed that Plaintiff contributed financially towards the development of the property. That was the Defendant's case.

The starting point is that the property was allocated to both parties on the 20 November 2013. The entry of both names on the form on page 57 of the record as Allottees confirms this. The property is therefore jointly owned. It is … where parties jointly own a property, there is a rebuttable presumption that they own it in equal shares. See *Lafonant v Kennedy* 2000(2) ZLR 280. Defendant's claim that he be awarded a 100% of the property is a request for the court to take Plaintiff's 50% and award it to him. Section 7(1) (a) of the Matrimonial Clauses Act [*Chapter 5:13*] allows the court to make an order that any asset be transferred from one spouse to the other. However for such an order to be made, there must be compelling reasons warranting the departure from the overarching principle of equality in the sharing of the property on divorce. See *Usayi* v *Usayi* SC 22/2024. The compelling reasons include which is listed in s 7(4) of the Matrimonial Clauses Act [*Chapter 5:13*],

> "(a) the income – earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> (c) the standard of living of the family including the manner in which any child was being educated or trained or expected to be educated or trained;
> (d) the age and physical and mental condition of each spouse and child;
> (e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage.
> (g) the duration of the marriage; ……"

In my view, both parties still have capacity to continue earning from their different endeavors, Plaintiff as a hairdresser and Defendant as a truck driver. From the parties' agreement, Defendant will be paying maintenance for the child. The marriage lasted for about 10 years during which period the parties were jointly working together in building their home. It was Defendant's evidence that whenever he was around, he would go with the Plaintiff to purchase building materials during the time the property was under construction. In his absence he would provide the finances and Plaintiff would do whatever was required. Defendant extensively proved his financial contribution through receipts and confirmation documents. Plaintiff on the other hand produced invoices to prove her physical involvement in the construction process and also called a witness to confirm her earnings through hairdressing and cross boarder activities. In addition it is … that one cannot place a monetary value on the indirect contribution made by a

wife and mother who faithfully performed her duties as a wife, mother, counsellor, domestic worker, house keeper, day and night nurse for her husband and children during the duration of the marriage. See *Usayi v Usayi* 2003 (1) ZLR 684. On the basis of the above the parties are entitled to equal shares in the property.

However, I am convinced that there is a reason for departing from the principle of equality in this case.

It was not dispured that Defendant contributed from the proceeds of the sale of his mother's rural home known as Stand 371 Juru Growth Point, Bhora, Murehwa. Section 7 (3) (a) of the matrimonial causes Act [*Chapter 5:13*] provides as follows.

> "(3) The power of an appropriate court to make an order in terms of paragraph (a) of subsection (1) shall not extend to any assets which are proved, to the satisfaction of the Court, to have been acquired by a spouse, whether before or during the marriage.
>
> (a) By way of an inheritance; or"
> (b)

Whilst it is the property that was inherited by a spouse that is excluded from division, distribution or appointments, I am of the view that proceeds from the disposal of such property is equally protected. *In casu*, the proceeds have been incorporated into the parties' contributions. An allowance to recognize the exemption of the amount from the inherited property is … Considering the amount involved I believe a compensation of 5% meets the justice of the case. Resultantly, the property will be shared on a 45% - 55% basis.

The following order is appropriate.

1) A decree of divorce be and is hereby granted.
2) The Plaintiff be and is hereby awarded custody of the minor child, Praise Chimanga, born on the 15th of May 2015.
3) The Defendant be and is hereby granted access to the minor child during two weekends per month upon prior communication with the Plaintiff.
4) Defendant shall contribute the following for the upkeep of the minor child until the child attains the age of majority or becomes self-sufficient whichever occurs first.;
    a) USD 100.00 or an amount equivalent in local currency.
    b) Payment of the minor's school fees, levies and all school related expenses including the purchase of school uniforms for the minor child once per year.

5) Plaintiff be and is hereby awarded
   a) Kitchen Utensils.
   b) Half of the curtains.
   c) 15 Kilograms gas cylinder.
   d) A queen sized bed.
   e) A 40 inch Samsung television set.

6) Defendant be and is hereby awarded
   a) 15,8 kilograms gas cylinder.
   b) Defy upright refrigerator.
   c) VW Jeter v 5 Reg No ACI 3711.
   d) Half of the curtains.

7) Plaintiff be and is hereby awarded a 45% share in stand 8015 Kuwadzana, Harare.
8) Defendant be and is hereby awarded a 55% share in Stand 8015 Kuwadzana, Harare.
9) The property shall be valued by an evaluator agreed by the parties within seven days of this judgement failing which one shall be appointed by the Registrar of the High Court on request by either party.
10) The Plaintiff shall have the option to buy the Defendant's share within 12 months of receipt of the valuation report or such other time as agreed by the parties.
11) In the event that the Plaintiff fails to buy the Defendant's share within the period in 10 above, Defendant shall have the option to buy the Plaintiff's share within a period of 12 months from such failure, or such other time as agreed by the parties.
12) In the event that the parties' fails to buy each other out in terms of paragraphs 10 and 11 above, the property shall be sold by an Estate agent agreed by the parties or appointed by the Registrar of the High Court.
13) The net proceeds of the sale shall be shared on a 45-55 ratio with Plaintiff getting 45% and Defendant getting 55%.
14) The parties shall share the cost of the valuation equally.
15) Each party shall bear its own cost.

MAXWELL J:……..

Legal Aid Directorate, plaintiff's legal practioners
Muchengeti and company, defendant's legal practitioners